

Court No. - 3

Case :- WRIT - C No. - 9351 of 2022

Petitioner :- Dhanraj

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Lavlesh Kumar Shukla

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

"(i) Issue writ, order or direction in the nature of certiorari for quashing the impugned demand/recovery citation dated 15.02.2021 issued by the respondent no.4 against petitioner showing demand/recovery of Rs. 4,40,341/- (Annexure no.6 to this writ petition_

(ii) Issue a writ, order or direction in the nature of mandamus directing the respondents to provide the statement of electric bills of petitioner/s connection by furnishing all details as what rate of electric has been charged upon petitioner time to time and what amount has been deposited by the petitioner till date and what the actual amount is due.

(iii) Issue a writ, order or direction in the nature of mandamus commanding the respondent no.2 to decide the objection/representation dated 06.12. 2021 submitted by the petitioner and till the disposal of said objection/r representation, not to take any coercive action against petitioner in pursuant to demand/recovery citation dated 15.2.2021."

Learned counsel for the respondent No 2 Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 18.5.2022

T.S.